

## 26TRCV01427 26TRCV01427

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-21

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Case Number: 26TRCV01427 Hearing Date: July 21, 2026 Dept: B

Moving

Parties: Defendant Sammie Archer III

Responding

Party: Plaintiff Sacha Granger

Demurrer to Complaint

The Court considered the moving and opposition papers.

RULING

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

BACKGROUND

On April

21, 2026, plaintiff Sacha Granger (self-represented) filed a complaint against Sammie Archer III for (1) false light, (2) IIED, and (3) injunctive relief.

LEGAL

AUTHORITY

When

considering demurrers, courts read the allegations liberally and in context. Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144

Cal. App. 4th 1216, 1228. "A demurrer

tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects

appear on the face of the pleading or are judicially noticed.” SKF Farms v. Superior Court (1984) 153 Cal. App. 3d 902, 905. “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” Hahn v. Mirda (2007) 147 Cal. App. 4th 740, 747.

## DISCUSSION

Defendant

Sammie Archer III (self-represented) demurs to the complaint on the ground that it fails to state sufficient facts to constitute a cause of action.

The

complaint alleges that on March 19, 2026, plaintiff appeared as the respondent in a Domestic Violence Retraining Order hearing in Los Angeles County Superior Court, case no. 26IWRO00290. During that proceeding, defendant presented a video which he represented to the Court as Ring camera footage from February 9, 2026.

The Court viewed the video during the hearing. After viewing the video, the Court questioned plaintiff regarding whether she was under the influence, based on her appearance as depicted in the video.

Plaintiff immediately denied being under the influence and stated that she has never consumed alcohol or used drugs.

The video presented in court did not accurately reflect plaintiff's actual appearance, demeanor, or condition on that date. Plaintiff is informed and believes that the video was altered, manipulated, edited, or otherwise presented in a manner that created a misleading and false impression.

Defendant knew or reasonably should have known that the video, as presented, would create a misleading impression regarding plaintiff's condition. Defendant nevertheless presented the video in

a judicial proceeding, where credibility and perception are critical, with conscious disregard for the truth and the impact such presentation would have on plaintiff. The Court did not retain the video, and it is not part of the official record. Upon information and belief, the video remains in the possession, custody, or control of defendant. Plaintiff has requested access to the video, but defendant has failed and/or refused to provide a copy. As a direct result of defendant's actions, plaintiff was portrayed in a false and misleading light during a judicial proceeding.

Defendant

argues that the causes of action are barred by the litigation privilege under Civil Code §47 as the allegations satisfy the elements.

In

opposition, plaintiff does not dispute that the video was presented during a judicial proceeding or that defendant was a litigant in that proceeding or that defendant offered the video in support of his request for a restraining order. Rather, plaintiff asserts, she alleges that the video materially represented plaintiff's appearance, demeanor, mannerisms, gait, and portion of the dialogue attributed to plaintiff and that the video was materially altered in a manner consistent with AI-assisted digital media manipulation.

The Court rules as follows: The Court finds that on their face, the causes of action are barred by the litigation privilege under Civil Code §47, even if, as alleged, the Ring video was materially altered or a "deep fake." Civil Code §47 states that, "[a] privileged publication or broadcast is one made: . . . (b) In any . . . (2) judicial proceeding." "The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212 (citations omitted). The allegations satisfy these four elements.

As alleged, defendant provided the Ring video in a restraining order proceeding to a judge as evidence to obtain a restraining order, which the judge viewed and questioned plaintiff about.

"To effectuate its vital purposes, the litigation privilege is held to be absolute in nature." *Id.* at 215 (citations omitted). "[S]tatements published in proceedings other than divorce actions may be malicious and still fall within the mantle of protection provided by the privilege." *Id.* at 216. "Pleadings and process, as well as filing false or perjurious testimony or declarations, are considered privileged." *Chen v. Berenjian* (2019) 33 Cal. App. 5th 811, 820 (citing to *Rusheen v. Cohen* (2006) 37 Cal. 4th 1048, 1058).

Accordingly, the demurrer to the complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

ORDER

The demurrer to the complaint is SUSTAINED WITHOUT LEAVE  
TO AMEND.

Defendant is ordered to submit a judgment of dismissal.

Defendant  
is ordered to give notice of ruling.